

MARKETING ANALYTICS PLATFORM SERVICES AGREEMENT

Contract ID: ISL-ANL-2025-0820

This Marketing Analytics Platform Services Agreement (this “Agreement”), effective as of August 20, 2025 (the “Effective Date”), is entered into by and between **Insightline Analytics Corp.**, with offices at 75 State Street, Suite 2600, Boston, MA 02109 (“Insightline”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Client”). Insightline and Client are each a “party” and together the “parties.”

1. SERVICES

- 1.1 Insightline provides a hosted marketing-analytics platform for campaign attribution, audience segmentation, and cross-channel reporting (“Platform”), plus quarterly analyst review sessions.
- 1.2 The Platform ingests Client’s first-party marketing and campaign data and produces dashboards and exports.

2. TERM AND RENEWAL

- 2.1 **Fixed Term.** This Agreement runs for twelve (12) months, from the Effective Date through **August 19, 2026**.
- 2.2 **No Automatic Renewal.** This Agreement does **not** renew automatically. It will expire at the end of the term **unless the parties sign a written renewal order**. The renewal/expiry date is **August 20, 2026**.
- 2.3 **Renewal Notice.** A party wishing to renew should give written notice of intent **at least sixty (60) days** before expiry (by **June 21, 2026**) so a renewal order can be negotiated; otherwise access ends at term and data is exported per Section 4.3.

3. FEES

- 3.1 The annual platform fee is **USD \$54,000**, invoiced in two semi-annual installments, **net 30**.
- 3.2 **No automatic price escalation** applies. Any change to fees for a renewal term must be mutually agreed in the renewal order.

4. DATA PROTECTION

- 4.1 Insightline processes Client personal data (including marketing audience identifiers and behavioral data) as a **processor** under the **Data Processing Addendum at Schedule 2**, which forms part of this Agreement.
- 4.2 Insightline shall implement appropriate security measures, restrict sub-processors to those listed in Schedule 2-A, and notify Client of a personal-data breach without undue delay and in any event within seventy-two (72) hours.
- 4.3 On expiry or termination, Insightline will provide a full data export in a machine-readable format and delete Client data within thirty (30) days of confirmation.

5. CONFIDENTIALITY

Standard mutual confidentiality applies for the term and three years thereafter.

6. LIABILITY

Aggregate liability capped at the fees paid in the prior twelve months, except for breach of Section 4, which is capped at two times such fees.

7. GOVERNING LAW

This Agreement is governed by the laws of the Commonwealth of Massachusetts, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 Entire Agreement; Amendment.** This Agreement, together with its Schedules and any renewal order, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Insightline Analytics Corp.

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: D. Fontaine

Name: L. Okonkwo

Title: Client Partner

Title: VP Marketing

Date: August 20, 2025

Date: August 20, 2025